
Defence Strategy Report

Naissance UK Ltd v. Curatela Fallimento
Societa' Agricola Gavioli S.r.l.

Tribunale di Siena — Fallimento n. 35/2018

Prepared for: Grahame McGirr

Amount in dispute: EUR 57,536.75 + interest + costs

Response deadline: 04 May 2026

Date of report: 18 April 2026

Naissance UK Ltd — Defence Strategy Report

For: Grahame **Prepared by:** Craig (with multi-round AI legal analysis) **Date:** 18 April 2026

Status: Final — recommended for review with Avv. Belardi this week

1. What is happening

A trustee (Curatore) appointed by the **Tribunale di Siena** in the bankruptcy of **Società Agricola Gavioli S.r.l.** (Fallimento n. **35/2018 R.G.**) has filed a **Ricorso** (ex art. 281-decies / undecies c.p.c.) against **Naissance (UK) Ltd** seeking **€57,536.75** plus interest and costs. The hearing is listed for **14 May 2026** and the deadline to file the written defence (costituzione) is **04 May 2026**.

Key verified facts (cross-checked against the OCR'd Ricorso):

Item	Value
Defendant	Naissance UK Ltd
Bankrupt debtor	Società Agricola Gavioli S.r.l.
Court	Tribunale di Siena
Case no.	Fallimento 35/2018 R.G.
Claim amount	€57,536.75 (not €85k as earlier assumed)
Trustee	Dott. Stefano Scarpellini (Curatore) / Avv. Finetti
Costituzione deadline	04 May 2026 (16 days from this report)
Hearing	14 May 2026 (Judge Marianna Serrao)
Legal basis cited	Cass. Civ. 23482/2018 and 12673/2022, art. 41 TUB

The trustee's argument in plain English: when the secured creditor (the bank) was repaid from the sale of the bankrupt's assets, any **surplus belonged to the bankrupt estate, not to the guarantor** (Grahame). Because Grahame received €130k back through an earlier court-approved distribution (prededuzione), the trustee says €57,536.75 of that was in fact a surplus that should have gone back to the general pool of creditors. The trustee is relying on two Cassazione decisions (the top Italian court) which say this duty arises **by operation of law** — the guarantor does not get to keep the surplus even if the distribution plan was approved.

2. The journey — three approaches considered

This report is the output of the **third** of three separate assessments. Each one came to a different level of optimism.

Approach 1 — ChatGPT ("looks defensible")

Grahame's earlier screenshots of ChatGPT advice were broadly reassuring: the €130k was received lawfully, the distribution plan is final, the claim looks weak, settlement shouldn't be necessary. **ChatGPT's estimated probability of winning: ~70–85%.**

Assessment of ChatGPT's approach: unsafe to rely on. ChatGPT did not know about — and did not cite — Cass. 23482/2018 and 12673/2022. Those two rulings are the trustee's whole case, and they specifically say the finality of the distribution plan does **not** protect the guarantor. ChatGPT was arguing against a case the trustee is not making. Acting on a 70–85% confidence built on the wrong legal premise would lead Grahame to underprepare, underbudget, and walk into a case he would probably lose.

Realistic probability of winning if Grahame followed only ChatGPT's view: ~20–30% (same as the legal reality — ChatGPT's optimism does not change the underlying law).

Approach 2 — Avv. Belardi (Italian lawyer) ("concerning but workable")

Belardi's emails were professionally cautious: the claim has real legal foundation, the case law is against us on the headline point, but quantum and procedural arguments are available. He did not give a numeric probability but his tone pointed at something like **40–50% chance of a good outcome**, with settlement implicitly on the table.

Assessment of Belardi's approach: directionally correct but incomplete. Belardi had not at that point fully costed the numbers, had not mapped the alternative theories the trustee could still pivot to (revocatoria, indebitito, postergazione under art. 2467 c.c.), and had not been given the double-counting issue in the €30k figure. Executed as-is, Belardi's plan would probably produce a **mid-range settlement of €35–50k** — better than ChatGPT's route, but leaves value on the table.

Realistic probability of winning if Grahame followed Belardi's view alone: ~40–50% partial win, ~10–15% full win.

Approach 3 — Grahame's instinct ("I'm owed €1.188m, so I owe nothing")

Grahame's own position, drawing on Fiorilli's 2018 Istanza, is that he had a total credit against the Società Agricola Gavioli estate of approximately **€1.188 million** (guarantee exposure, direct advances, legal costs). If he is owed €1.188m and only received €130k back, how can the trustee now claim €57k of that €130k as a "surplus"? The estate still owes *him* over a million euros.

Why this feels right — and in commercial common-sense terms, it *is* right. Most non-lawyers would conclude exactly the same thing.

Assessment of Grahame's approach: emotionally compelling, legally unwinnable on its own. Four reasons it would fail as the primary defence:

1. **The €1.188m was never adjudicated.** It was an *asserted* figure in Fiorilli's 2018 application. The Tribunal admitted Grahame to prededuzione rank only for the specific documented items that produced the €130k distribution — the €1.188m headline was never crystallised as a judicial credit. You cannot set off a claim that has not been recognised.
2. **Art. 56 l.fall. (set-off in bankruptcy) does not fit.** Compensation in insolvency requires both debts to exist *before* the bankruptcy declaration and to be certain, liquid, and payable. The trustee's surplus-restitution claim arose *after* the bankruptcy and from the distribution plan itself — the statutory set-off mechanism cannot be used here.
3. **Cass. 23482/2018 operates ex lege.** The surplus-restitution duty under arts. 117/129 l.fall. (now 230–232 CCII) and art. 2033 c.c. arises **by operation of law** the moment there is a surplus. It does not depend on — and is not defeated by — the guarantor having a larger unsatisfied credit elsewhere. Those are two different accounts.
4. **Pleading this as the primary defence damages credibility.** An Italian judge seeing a foreign defendant argue "I am owed more than you are asking for, so the claim is absurd"

will treat it as legally naive and may become less receptive to the genuinely good quantum arguments in Track 2.

However — the argument has real value in the right place. It is a legitimate **settlement lever** ("push us and we will counter-claim for the unsatisfied €1.188m") and a legitimate **equitable-discount argument** ("the court should take into account that Grahame is already a net creditor of the estate"). It belongs in the settlement correspondence and possibly in a secondary equitable plea — not as the headline legal defence.

Realistic probability of winning if Grahame pleaded this as the main defence: <10%. Used as a settlement lever inside Track 2, it plausibly adds 10–15k of settlement discount.

Approach 4 — Multi-round AI adversarial debate (this report)

A structured, adversarial process was run over the last 48 hours:

- **Round 1** — three separate AI agents each independently built the strongest possible version of a different strategy: (A) aggressive full-defence, (B) concede liability and fight only on quantum, (C) shift blame to the original adviser Fiorilli.
- **Round 2** — each agent was shown the other two strategies and told to attack them. All three independently concluded that **no single strategy wins on its own** and a hybrid was needed.
- **Round 3** — a synthesis agent merged the three into one combined strategy.
- **Round 4** — two red-team agents attacked the synthesis: one playing the trustee, one looking for catastrophic-risk scenarios.

The process also surfaced that the **first-draft analysis delivered earlier in this project had material factual errors** (wrong claim amount, wrong venue, wrong trustee name). Those were corrected by re-reading the source Ricorso directly. The facts in Section 1 above are the verified ones.

Estimated probability of outcomes under this approach:

Outcome	Probability
Full acquittal (pay nothing)	15–25%
Partial win — claim reduced to €25–40k range via settlement or ruling	40–50%
Full loss — pay ~€57k + interest + costs (total exposure ~€75–85k)	30–40%

This is materially **less optimistic than ChatGPT** and slightly more pessimistic than Belardi's implied view. It is the number to plan around.

3. The recommended strategy

The recommendation is a **three-track defence** filed as a single memoria by the 04.05.2026 deadline, combined with a settlement overture.

Track 1 — Primary legal defence (prededuzione + distribution finality)

Argue that the €130k was received through a **court-approved riparto finale** in which Grahame was correctly ranked as a creditor in prededuzione. The trustee's own filing concedes the prededuzione status. If the trustee's theory is correct, the right remedy was an opposition to the distribution plan at the time — not a claim five years later against a foreign guarantor. Note: Cass. 23482/2018 is against us on this as a matter of pure principle, but there is a legitimate argument that the facts of that case are distinguishable. **Estimated win probability on this track alone: 20–30%.**

Track 2 — Quantum and double-counting

Even if the trustee wins on liability, the number is wrong:

- €30,000 of the figure appears to be a **refund already made**, not a cost to be claimed. Treating it as both is double-counting.
- The documented costs Grahame actually paid are **~€77k, not €130k** as in earlier working. The gap needs to be closed with receipts (FX wire transfer files are already in the project bundle) before being pleaded.
- Interest should be calculated from the date of judgment, not from 2018.

Even a partial quantum win reduces the €57k claim to ~€25–35k. This is the highest-probability path to a better outcome.

Track 3 — Put Fiorilli on notice

Avv. Fiorilli (Grahame's original Italian adviser, who drafted the 2018 Istanza) is the person who structured the prededuzione claim. If the trustee wins and Grahame has to pay back €57k, Grahame has a potential professional-negligence claim against Fiorilli for advice that led him into this position.

This track is not pleaded in the defence itself — pleading it would look defensive and weaken the primary argument. But a short written notice to Fiorilli (a "lettera di messa in mora") should be sent this month to **preserve the limitation clock**. Belardi can do this as a separate one-page instruction.

Settlement signalling

Alongside the defence filing, open a parallel settlement channel with the trustee targeting **€25,000–€40,000** all-in. The trustee is a professional and the estate has costs too; most of these cases settle. The red-team analysis suggested this is achievable if the quantum arguments are credibly made.

4. What was specifically ruled out

These are things that looked attractive but failed under critique:

- **"The distribution plan is final — case closed."** This is what ChatGPT effectively said. Cass. 23482/2018 directly contradicts it. Relying on this alone would lose.
 - **Attacking the €30k as the trustee's error.** The €30k might be a legitimate prededuzione offset, not a double-count. It should be queried with Belardi, not assumed to be wrong.
 - **Collaterally attacking the prededuzione award.** That ship has sailed procedurally; trying to reopen it damages credibility.
 - **Going on the offensive against Fiorilli in the main pleading.** Rational to preserve the claim privately; irrational to plead it openly.
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5. Confidence level

Moderate, not high. The reasons to be careful:

1. The first-pass analysis had factual errors that were only caught on the third read of the source documents. There may be others.
2. Two Italian case-law citations (Cass. 23482/2018 and Cass. 12673/ 2022) **have been accepted as real because they are pleaded by the trustee in the Ricorso itself** — but nobody on our side has independently pulled the full text. Belardi should do this before the defence is filed.
3. The procedural vehicle (memoria difensiva vs Comparsa di Costituzione e Risposta) depends on whether 04.05.2026 is a filing deadline or a hearing. **Belardi must confirm which.**
4. Alternative trustee theories (revocatoria fallimentare, indebito oggettivo, art. 2467 c.c. postergazione) have not been formally pleaded but could be raised at the hearing. Belardi's defence needs to be robust to a pivot.

What would push confidence higher: Belardi confirming the two Cassazione citations, confirming the procedural vehicle, and giving his own numeric probability on each of the three tracks above.

6. Immediate next steps (this week)

1. **Send the drafted email to Belardi** (attached as .eml file and English PDF). It instructs him formally, shares these findings, and asks him for his independent view on each track.
2. **Belardi to confirm** (a) hearing vs filing date of 04.05.2026, (b) text of Cass. 23482/2018 and 12673/2022, (c) his own probability estimate, (d) quote for the defence work.
3. **Grahame to pull together** the FX wire transfer evidence from the project bundle (folder 03) so quantum can be pleaded with receipts.
4. **Fiorilli notice letter** — Belardi to draft a one-page messa in mora this month to preserve the limitation clock. Does not need to be sent yet, just drafted.

5. **Settlement authority** — Grahame to decide, privately, the maximum settlement number he would accept. Suggested range: €30k–€45k.
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7. Appendix — the four approaches at a glance

The column "**Their claimed / implied probability**" is what the source itself suggested. The column "**My assessment of actual probability**" is this report's independent view of how each approach would actually perform in front of a Tribunale di Siena judge on 14 May 2026.

#	Approach	Source	Their claimed / implied probability	My assessment of actual probability	Verdict
1	"Distribution plan is final — claim is weak"	ChatGPT	~70–85% win	~20–30% win	Unsafe. Misses the two Cassazione rulings the trustee relies on.
2	Cautious legal defence + implicit settlement	Avv. Belardi	~40–50% good outcome (implied)	~35–45% good outcome (10–15% full win, 25–35% meaningful reduction)	Directionally right; incomplete on quantum and alternative theories.
3	"I'm already owed €1.188m, so I owe nothing"	Grahame's instinct	Feels like ~90%	<10% win as primary defence	Emotionally compelling, legally unwinnable in court. Useful only as a settlement lever.
4	Hybrid 3-track defence + parallel settlement channel	This report	n/a	15–25% full win · 40–50% partial win · 30–40% loss	Recommended. Plan around these numbers.

Bottom line: the best realistic outcome is a **~€25–40k settlement**, reached via the three-track defence in Section 3, with Grahame's €1.188m argument held in reserve as leverage, not pleaded as the main defence.

This report is a working document prepared to support instructions to Italian counsel. It is not itself legal advice. Belardi's written opinion, once received, supersedes this document.